

**Before the
Federal Maritime Commission**

Docket No. 24-17

Samsung Electronics America, Inc.
v.
Orient Overseas Container Line, Limited,
and OOCL (Europe) Ltd.
v.
Samsung Electronics Company, Ltd.

RESPONDENTS' MOTION FOR ENLARGEMENT OF TIME TO FILE
SUPPLEMENTAL BRIEFS

Pursuant to 46 C.F.R. §502.102 Orient Overseas Container Line, Limited and OOCL (Europe) Ltd. (“Respondents”), through their undersigned counsel, move for an extension of the **June 26, 2025** deadline, set forth in the Presiding Officer’s Order Requiring Supplemental Briefs (“Order”), for OOCL to file a Supplemental Brief, and for commensurate extensions of the **July 10, 2025** and **July 17, 2025** dates set forth therein for the filing of Responsive and Reply Briefs. Respondents request that the dates be re-scheduled, if necessary, at the time that the Presiding Officer rules upon the Respondents’ Motion for Reconsideration which accompanies the filing of this Motion for an Enlargement of Time.

Pursuant to 46 C.F.R. § 502.228, motions for enlargement of time for the filing of any pleading or other document “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.”

Respondents have today filed a Motion for Reconsideration with respect to that part of the Presiding Officer's Order of June 11, 2025 ("Order") directing OOCL to file a "Supplemental Brief" explaining why the Third Party Complaint should not be dismissed for failure to state a claim, and which permits Samsung Electronics Company, Ltd. ("Samsung" or "Third Party Respondent") to file a Supplemental Brief in response. The Motion requests that the Presiding Officer issue an amended order which deletes the directive to OOCL that it file a Supplemental Brief, and the permissive filing of a responsive Supplemental Brief by Samsung. The deadlines for filing these Supplemental Briefs are:

June 26, 2025:	OOCL to file Supplemental Brief.
July 10, 2025:	Samsung permitted to file responsive Supplemental Brief.
July 17, 2025:	OOCL Reply.

As it is unlikely that the Presiding Officer will rule on Respondents' Motion before June 26, 2025, Respondents request that the June 26, 2025 and subsequent, related deadlines be extended and rescheduled, if necessary, after the Presiding Officer Rules on Respondents' Motion for Reconsideration.

On June 13, 2025, the undersigned held a telephone conference with counsel for Complainant and Samsung to discuss the accompanying Motion for Reconsideration. During that time, the undersigned advised that OOCL would also seek an enlargement of time to file the Supplemental Brief and related subsequent filings. The undersigned received emails from counsel for Complainant on June 16, 2025, and from Samsung on June 18, 2025, advising they opposed OOCL's Motion for Reconsideration. The undersigned today asked opposing counsel to clarify if they consented or opposed the accompanying Motion for an Enlargement of Time. As of this filing, opposing counsel have not responded.

For the foregoing reasons, OOCL respectfully requests an enlargement of time for filing Supplemental Briefs, and that the June 26, 2025, July 10, 2025, and July 17, 2025, deadlines be re-scheduled, if necessary, at such time as the Presiding Officer rules on Respondents' Motion for Reconsideration.

DATED: June 18, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 18th day of June, 2025, a true and correct copy of the foregoing Motion for Enlargement of Time was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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